

STATE OF NEW YORK

4274--C

Cal. No. 1331

2025-2026 Regular Sessions

IN SENATE

February 3, 2025

Introduced by Sen. KAVANAGH -- read twice and ordered printed, and when printed to be committed to the Committee on Elections -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported favorably from said committee, ordered to first and second report, amended on second report, ordered to a third reading, and to be reprinted as amended, retaining its place in the order of third reading -- reported favorably from said committee to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the election law, in relation to requiring the board of elections in a city with a population of one million or more to provide certain notices prior to a change of polling place

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 2 of section 4-104 of the election law is
2 amended to read as follows:

3 2. (a) If the board of elections, after designating a polling place,
4 and after sending written notice of such polling place to each regis-
5 tered voter, designates an alternative polling place, it must, at least
6 five days before the next election or day for registration, send by mail
7 a written notice to each registered voter notifying ~~[him]~~ such voter of
8 the changed location of such polling place. If such notice is not possi-
9 ble the board of elections must provide for an alternative form of
10 notice to be given to voters at the location of the previous polling
11 place.

12 (b) In a city with a population of one million or more, if the board
13 of elections, after designating a polling place, is notified of the need
14 to change the location of such polling place, such board of elections
15 shall, within five days of receiving such notice, notify by mail:

16 (i) the chairpersons of all state party committees;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (ii) the chairpersons of all county party committees in the county in
2 which such polling place is located;

3 (iii) the member of the state assembly representing the district in
4 which such polling place is located and any member of the state assembly
5 whose district includes any election district the residents of which are
6 assigned to vote at such polling place;

7 (iv) the state senator representing the district in which such polling
8 place is located and any state senator whose district includes any
9 election district the residents of which are assigned to vote at such
10 polling place;

11 (v) the city councilmember representing the district in which such
12 polling place is located and any city councilmember whose district
13 includes any election district the residents of which are assigned to
14 vote at such polling place; and

15 (vi) in an assembly district in which assembly district leaders are
16 elected to represent an entire assembly district, the assembly district
17 leaders representing the district in which such polling place is located
18 and any assembly district leader whose district includes any election
19 district the residents of which are assigned to vote at such polling
20 place, or, in an assembly district in which district leaders are elected
21 in parts, the district leaders for the part in which the polling place
22 is located and any assembly district leader whose part includes any
23 election district the residents of which are assigned to vote at such
24 polling place.

25 § 2. This act shall take effect immediately.